

24VECV00073 24VECV00073

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 24VECV00073 Hearing Date: September 9, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MARVIN

ROBERTO HERNANDEZ,

Plaintiff,

vs.

MARCELA

ARTEAGA; DOES 1 TO 20, INCLUSIVE,

Defendant.

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CASE NO.: 24VECV00073

ORDER

DENYING DEFENDANT'S MOTION TO COMPEL PLAINTIFF'S DEPOSITION

I.

BACKGROUND

Marvin Roberto Hernandez

("Plaintiff") filed this motor vehicle tort action against Marcela Arteaga ("Defendant"). Plaintiff alleges Defendant ran a red light and struck his vehicle as he was making a left turn. Defendant now moves to compel Plaintiff's deposition.

II.

PROCEDURAL

HISTORY

On January 5, 2024, Plaintiff filed a Complaint alleging (1) Negligence and (2) Motor Vehicle tort.

On March 13, 2025, Defendant filed an Answer.

On May 29, 2026, the Court granted Plaintiff's counsel's Motion to Be Relieved.

On August 13,
2026, Defendant filed the instant Motion.

As of
September 8, 2026, no opposition has been filed.

III.

LEGAL STANDARD

Code of Civil

Procedure § 2025.450(a)[1]

provides, “[i]f, after service of a deposition notice, a party to the action... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it..., the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.”

Code of Civil

Procedure § 2025.410(a), provides, “[a]ny party served with a deposition notice that does not comply with [the notice requirements in Code of Civil Procedure §§ 2025.210 through 2025.290] waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served.”

IV.

MEET AND CONFER

A motion to

compel deposition must be accompanied by a meet and confer declaration, showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference to resolve the issue, or, when the deponent fails to attend the deposition, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. (See Code Civ. Proc. § 2025.450(b)(2).)

Defendant's

counsel attests she mailed Plaintiff a meet and confer letter inquiring about

his nonappearance and requesting Plaintiff to contact her to reschedule his deposition. (See Declaration of Jennifer S. Thomas filed August 13, 2026 (“Thomas Decl.”), ¶ 11, Ex. H.) Thus, Defendant has satisfied her obligations.

V.

ANALYSIS

Defendant’s

counsel attests Plaintiff failed to appear for his noticed depositions on March 26, 2026, and May 11, 2026. (See *id.*, ¶¶ 7, 9-10.) Defendant asserts Plaintiff did not object to these depositions. (See *Mot.* at 5:26-6:1.) Defendant’s counsel attests to date, Plaintiff has failed to reschedule his deposition. (See Thomas Decl., ¶ 12.)

The Court

will deny the Motion. Trial is scheduled for September 23, 2026; the discovery motion cutoff date was September 8, 2026. (See Code Civ. Proc. § 2024.020(a).) “A party who notices a discovery motion to be heard after the discovery motion cutoff date does not have a right to have the motion heard...subdivision (a) of section 2024.050 specifically allows a discovery motion to be heard after the discovery motion cutoff date by providing that the court may grant leave...to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set...in exercising its discretion to grant or deny the motion the court must consider various factors...” (Pelton-Shepherd Indus., Inc. v. Delta Packaging Prods., Inc. (2008) 165 Cal.App.4th 1568, 1586 (cleaned up).)

Here,

Defendant didn’t file a motion for any relief available to it under § 2024.050 or address the untimeliness of the instant motion in its moving papers.

VI.

CONCLUSION

Based on the foregoing, the Court DENIES Defendant’s Motion to Compel Plaintiff’s Deposition.

IT

IS SO ORDERED.

DATED: September 9, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.